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California bill would ban five chemicals from food, including Skittles

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The ingredients of manufactured food ranging from Skittles and Hot Tamales to corn tortillas, cake icing and citrus soda could have to be reworked if a California State Assembly bill passes.

California Assembly Bill 418 calls for the banning of five additives.

Products using the chemicals would be forbidden for manufacture or sale in the state until the substances were removed.

Candy lovers would see changes to Skittles and M&Ms from Mars Inc. A chemical used to brighten the colors on their shells would be prohibited by the California bill.

Other confections, like Hot Tamales, use red dye No. 3, which, while FDA-approved for food, has been banned in cosmetics for over 30 years.

Citrus soda, such as Sun Drop, would lose an emulsifier that prevents flavoring from rising to the top of each bottle.

California Assembly Bill 418 aims to correct what advocates see as lack of federal oversight. Many chemicals are allowed because of a rule that lets companies decide which ingredients are “generally regarded as safe,” and therefore permissible for use.

As for why the five substances are considered unsafe by some, Consumer Reports writes that:

• Brominated vegetable oil has been linked to neurological, behavioral, developmental, reproductive, heart, liver and thyroid problems.

• Potassium bromate has been linked to cancer.

• Propylparaben has caused reproductive issues and hormonal disruption in lab-tested animals.

• Red dye No. 3 has caused cancer and tumors in animals and has been linked to hyperactivity and other issues in children.

• Titanium dioxide has been linked to digestive problems.

If the bill becomes law, food changes could spread nationwide.

“It is unlikely they'll have one recipe in California and one in Oklahoma,” Assemblyman Jesse Gabriel, Woodland Hills Democrat and sponsor of the bill, told the Daily Mail.

Industry advocates have not taken the bill lying down.

A coalition of groups, including the National Confectioners Association, American Bakers Association, California Grocers Association, American Chemistry Council and California Chamber of Commerce, sent a letter to Jim Wood, Healdsburg Democrat and chairman of the California Assembly Committee on Health, expressing their concerns.

“The current regulatory environment provides significant scientific oversight where qualified regulators review

hazards and risks. These regulatory bodies with scientific professionals have responsibility over all food additives, and these scientifically based regulatory processes should be allowed to continue without second-guessing their outcomes," the letter reads.

A separate letter solely by the National Confectioners Association to the bill's sponsors points out existing safety margins, as well as the candy industry's role in the California economy.

"In California, the confectionary industry represents a $7.7 billion economic output, pays $1.8 billion in wages and supports 106,351 total jobs in the state," the NCA pointed out.

FDA regulations establishing how much of each substance can be used on certain products are sufficient, the NCA argued.

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